

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
AARON HUNTER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER HILMEE M. KASSIM,
SHIELD 9792, POLICE OFFICER SHEIKH M.
AKTARUZZMAN, SHIELD 26939 AND POLICE OFFICERS
JOHN DOE #1-4 (FICTITIOUS NAMES BECAUSE THEIR
IDENTITIES ARE UNKNOWN), ALL INDIVIDUALLY AND
IN THEIR CAPACITY AS POLICE OFFICERS,
Defendants.

-----X

**SUMMONS WITH
VERIFIED COMPLAINT**

Index No:

Date Purchased:

Plaintiff designates Bronx
County as the place of trial. The
basis of the venue is that Bronx
County is the place where the
cause of action arose.

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service, (30) days after the service is complete, if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 27, 2024

/s/ ROYCE RUSSELL
R-SQUARE ESQ, PLLC.
Royce Russell, Esq.,
Attorneys for the Plaintiff
112 West 34th, 18 Floor
New York, New York 10120
(718) 785-8890

Defendants' address:

The City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, NY 10007

New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officer Hilmee M. Kassim
Shield 9792
c/o 1 Police Plaza
New York, New York 10038

Police Officer Sheikh M. Aktaruzzman
Shield 26939
c/o 1 Police Plaza
New York, New York 10038

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**VERIFIED COMPLAINT
INDEX #**

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Defendants.

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Plaintiff, Aaron Hunter, by his attorney, R-SQUARE, ESQ., PLLC. complaining of the
defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT/ NATURE OF CLAIMS

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fee pursuant Article 1 Section 11 of the New York State Constitution for denial of Equal Protection and redress for tortuous conduct against Plaintiff by Defendants through False Arrest, Battery, Abuse of Power and Authority, Excess Force, Conspiracy, Malicious Prosecution and Prima Facie Tort.
2. Additionally, Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§1981, 1983 and 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the State of New York and the United States as well as State Law claims articulated herein.
3. Plaintiff seeks redress pursuant to 42 U.S.C. §1983 and 1988, et. seg, for violation of his rights secured by the First, Fourth, Sixth and Eight Amendments and Due Process clause of the Fourteenth Amendment of the United States Constitution.

JURISDICTION AND VENUE

4. Jurisdiction and Venue is appropriate given the incident arose in Bronx County within the State of New York.

JURY TRIAL DEMANDED

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant State Law and Fed. R. Civ. P.38 (b). Plaintiff seeks both compensatory and punitive damages, affirmative and equitable relief, an award of costs, interest, and attorney's fees and seek other further relief as this Court deems equitable and just.

PARTIES

6. Plaintiff, Aaron Hunter, an African American male, currently resides at 982 C. Rodgers Place, #3, Bronx, NY 10459 and at the time of this incident resided at the abovementioned location.
7. Defendant CITY OF NEW YORK was and is a Municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
8. Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.
9. That at all times hereinafter mentioned, Police Officer Hilmee M. Kassim, Shield 9792, Police Officer Sheikh M. Aktaruzzman, Shield 26939 and Police Officers John Doe #1-4 were duly sworn police officers of the New York City Police Department and were acting under the supervision of said department and according to their official duties, prior to March 28, 2023, on March 28, 2023 and thereafter.
10. That at all times hereinafter mentioned the Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, custom/ usages, patrol guidelines and/or practices of the

State of New York and/or the City of New York, prior to March 28, 2023, on March 28, 2023 and thereafter.

11. Each and all of the acts of the Defendants alleged herein were done by Defendants while acting within the scope of their employment by Defendant CITY OF NEW YORK.
12. All aforementioned conduct was committed by the City of New York, their agents, servants or employees, while acting in the scope of their employment.
13. At all relevant times herein, Police Officers Hilmee M. Kassim (Shield 9792), Sheikh M. Aktaruzzman (Shield 26939) and John Doe #1-4 were present, assisted and/or witnessed said conduct and failed to intervene, stop, or mitigate it.
14. Plaintiff was falsely accused with the crime of Disorderly Conduct, among one other charge.
15. The Plaintiff was never issued a Desk Appearance Ticket (DAT) by Police Officers Hilmee M. Kassim (Shield 9792), Sheikh M. Aktaruzzman (Shield 26939) and/or John Doe #1-4 to prosecute the Plaintiff but was threatened with prosecution.
16. The Plaintiff was forced to retain an Attorney to ensure no warrant was issued in retaliation to him filming his illegal detention.
17. That notice of the Plaintiff's claim and notice of intention to sue for damages which sets forth the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the Comptroller of the Defendant "City" and the Corporation Counsel of the City of New York. Said Notice included a Notice to Preserve Evidence.
18. That no 50(h) hearing was held.
19. That more than 30 days have elapsed since the Notice of Claim and intention to sue has been served upon the Defendants, and the said Defendants have neglected or refused to make any adjustment or payment thereof.

20. That the action is commenced within one year and 90 days after the cause of action arose.
21. It is hereby alleged, pursuant to CPLR 1603, that the action is exempt from the operation of CPLR §1601 from the operation of CPLR §1601, by reason of one or more of the exemptions provided in CPLR §1602.

FACTS

22. On March 28, 2023 at approximately 10:00 p.m., the Plaintiff and a friend, were lawfully at the location of 163rd and 164th Street and Prospect Avenue in Bronx, New York, within the State of New York conversing and walking.
23. At that date, time, and location the Plaintiff and friend noticed an unmarked police car following them as they walked.
24. Plaintiff was walking on the inside of the sidewalk and his friend on the outside of the sidewalk. The unmarked Police car's windows were partially rolled down, but as the car kept following the Plaintiff and his friend, the occupants completely rolled down the windows.
25. The Plaintiff and his friend continued to walk as they spoke amongst themselves about being followed by Police while they recorded their experience.
26. The unmarked Police car stopped and four (4) Police Officers (hereafter referred to as "Officer Kassim" or "Kassim", "Officer Aktaruzzaman" or "Aktaruzzaman", "John Doe #1-4" "Officers-Defendants" or "Defendants"), exited their car and pushed the Plaintiff against a gate.
27. The Plaintiff was illegally seized and searched.
28. The Plaintiff did not consent to the search as he asked prior to being searched "Why are you touching/searching me?".
29. The Plaintiff also continued to record the detention and asked, "Why am I being stopped?".

Defendants were unresponsive to his questions.

30. Upon leaving the location, the Defendants stated they detained the Plaintiff because they thought he had a weapon. The Plaintiff replied that it was a lie because he was walking on the inner side of the sidewalk with his phone recording and a bottle of water in his right pants pocket with the green top of said bottle sticking out.
31. The Plaintiff said they were lying because Defendants did not state the purpose of the detention until after he was searched, thus fabricating an excuse for the illegal detention.
32. The Plaintiff refused the business cards of the four (4) Defendants and told them to “Stop touching people.”
33. The Defendants replied, “We do what we want” and threatened an arrest for Disorderly Conduct.
34. All aforementioned conduct was committed by the City of New York, their agents, servants or employees while acting in the scope of their employment.
35. The arrest, imprisonment, and the physical contact were all without just cause, provocation, and said actions were offensive to Plaintiff, unprivileged and without his consent. The Plaintiff was maliciously prosecuted in Transit Court and Criminal Court as his cases were dismissed.
36. Defendants did not at any time intervene in the illegal detention, arrest, search, and seizure or thereof authority and/or power in reference to the false arrest of Plaintiff.
37. The detention, arrest, imprisonment, search, and seizure were all without just cause, provocation, and said actions were excessive, offensive to the Plaintiff, unprivileged, and without his consent.
38. All the above occurred as a direct result of the unconstitutional policies, customs, or practices of the City of New York, including, without limitation, the inadequate, screening, hiring, retaining, training, and supervising of its employees, deliberate indifference as to punishment for misconduct against Aaron Hunter.

39. As a result of the foregoing, Aaron Hunter sustained soreness to his body, and limbs and emotional and mental anguish as well as emotional distress, embarrassment, humiliation, and deprivation of his Constitutional Rights.
40. All aforementioned conduct was committed by the City of New York, their agents, servants, or employees while acting in the scope of their employment.
41. The City of New York, their agents, servants, or employees intended to confine the Plaintiff. Plaintiff was conscious of said confinement and did not consent thereto, and the confinement was not otherwise privileged, all without just right, probable cause and without grounds therefore.

AS AND FOR A FIRST CAUSE OF ACTION
PURSUANT TO NEW YORK CONSTITUTION
ART.I, 11

42. Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs “1” through “41” with the same force and effect as if fully set forth herein.
43. By the aforesaid acts, Defendants have violated Plaintiff’s right to the equal protection laws under Article I, 11 of the New York State Constitution, thereby giving rise to a cause of action pursuant to that Article.
44. The conduct and actions of the named Defendant Police Officers, and the Defendant City of New York, acting under color of law, in falsely detaining, arresting, imprisoning, battering, assaulting, and conspiring against Plaintiff, was done intentionally, maliciously, and/or with a reckless disregard for the natural probable consequences of their acts, was done without lawful justification, and was designed to and did cause-specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff’s Constitutional rights as guaranteed under law and Constitution of the State of New York. The above-described actions and omissions engaged in under color of state law by the named Police Officer Defendants, including Defendant City of New York, sued as a person within the meaning of Article I, 11 deprived the Plaintiff of rights, including but not limited

to, their rights under Article I, 8, 9 guaranteeing freedom of expression and association, Article I, 12 guaranteeing protection against unlawful seizure of his person, Article I, 11 guaranteeing due process and equal protection under the law, and Article I, 15 guaranteeing protection from cruel and unusual punishment.

45. By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

AS AND FOR A SECOND CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING AND SUPERVISION

46. Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs “1” through “45” with the same force and effect as if fully set forth herein.
47. The above-described injuries suffered by the Plaintiff are the proximate result of the negligence of the Defendant New York City Police Department, in that the Defendant City of New York and the New York Police Department failed to exercise reasonable care in the hiring, employment, supervision, and training of its employees.
48. The Defendant City of New York and the New York City Police Department had, or should have had, knowledge of the vicious and violent tendencies of its employees, including all of the named Police Officer Defendants.
49. Defendant City of New York, and the New York City Police Department knew or should have known of the unlawful actions of the named Police Officer Defendants, through actual and constructive notice of their unlawful activities including, but not limited to, those allegations as set forth in the preceding paragraphs above. Defendants City of New York, and New York City Police Department failed to exercise reasonable care by retaining and not terminating the employment of the named Police Officer Defendants or taking other appropriate action. The occurrence complained of herein was due to the negligence and recklessness of the Defendant City of New York and the New York Police Department.

50. By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR A THIRD CAUSE OF ACTION FALSE DETENTION/ FALSE
IMPRISONMENT**

51. Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs “1” through “50” with the same force and effect as if fully set forth herein.

52. By the aforesaid acts, the Defendants unlawfully and unjustifiably detained the Plaintiff without any lawful cause whatsoever. The Defendants acted willfully, unlawfully, maliciously, recklessly, and negligently in detaining and arresting the Plaintiff despite Plaintiff’s innocence and utilized its power and authority to illegally seize and search Plaintiff as well as to cover up their wrongful conduct. The Defendants illegally seized Plaintiff’s person detaining and imprisoning the Plaintiff by not allowing him to exercise his right to liberty when no probable cause existed to detain the Plaintiff.

53. The Defendant's tortuous conduct as set forth above herein directly resulted in the Plaintiff being wrongfully detained and arrested.

54. By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR A FOURTH CAUSE OF
ACTION FALSE ARREST**

55. Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs “1” through “54” with the same force and effect as if fully set forth herein.

56. By the aforesaid acts, Defendants unlawfully and unjustifiably arrested the Plaintiff without any lawful cause whatsoever. Defendants acted willfully, unlawfully, maliciously, recklessly and negligently in detaining and arresting Plaintiff despite Plaintiff’s innocence, and utilized their power and authority to illegally seize, and search Plaintiff as well as to cover up their wrongful conduct. The Defendants illegally seized Plaintiff’s person by

detaining, handcuffing, arresting, and imprisoning Plaintiff by not allowing him to exercise his right to liberty when no probable cause existed to arrest Plaintiff.

57. The Defendants' tortuous conduct as set forth above herein directly resulted in the Plaintiff being wrongfully arrested.

58. By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

AS AND FOR A FIFTH CAUSE OF ACTION
PRIMA FACIE TORT

59. Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "58" with the same force and effect as if fully set forth herein.

60. In falsely detaining, arresting, imprisoning, fabricating, and conspiring, against Plaintiff, the Defendants acted with malicious intent, recklessness, and negligence to injure and harm Plaintiff.

61. By reason of the tortuous conduct of the Defendants, Plaintiff has been damaged as set forth above.

62. For all claims under New York State Law, Defendants are jointly and severally liable to the Plaintiff inasmuch as this action arises out of the exceptions set forth in 1602 subdivisions 5, 7, and 11 of the Civil Practice Law and Rules.

AS AND FOR A SIXTH CAUSE OF ACTION
ASSAULT AND BATTERY

63. Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "62" with the same force and effect as if fully set forth herein.

64. By the aforesaid acts, Defendants have caused physical harm and injury upon the person of the Plaintiff named in the complaint herein. The Defendants acted willfully, unlawfully,

maliciously, recklessly, unjustifiably, negligently, in the abuse of power and authority, and excessive force used therein which resulted in the Plaintiff being seized by the Defendants who illegally detained the Plaintiff. The Plaintiff did not consent to being touched about his body and illegally searched. The Plaintiff suffered soreness to his body and limbs as well as mental and emotional distress.

65. By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

AS AND FOR A SEVENTH CAUSE OF ACTION
CONSPIRACY AND FABRICATION OF EVIDENCE

66. Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs “1” through “65” with the same force and effect as if fully set forth herein.

67. The named Defendant Police Officers did knowingly and intentionally agree and/or otherwise conspire to provide false evidence against the Plaintiff to cover up their wrongdoing of falsely detaining, arresting, imprisoning, battering, assaulting, searching, and illegally seizing Plaintiff by the aforementioned omissions.

68. The Defendants' tortuous conduct caused the Plaintiff to suffer severe emotional distress and thus, the Plaintiff has been damaged as set forth above.

AS AND FOR AN EIGHTH CAUSE OF ACTION
EXCESSIVE FORCE

69. Plaintiff repeats, reinstates, and realleges each and every allegation contained in Paragraphs “1” through “68” with the same force and effect as if fully set forth herein.

70. That Police Officers Kassim, Aktaruzzaman and John Doe #1-4, as agents, servants, and/or employees of the City of New York, maliciously used excessive force in arresting the Plaintiff.

71. Defendants physically abused the Plaintiff by forcibly grabbing, shoving, and pushing him. The Defendants' exercise of excessive force resulted in a soreness to the Plaintiff's body and limbs.

72. As a result of the Defendants' misconduct, Plaintiff suffered emotional and mental distress.

73. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

WHEREFORE, Plaintiff, Aaron Hunter, respectfully requests judgment upon all causes of action against Defendants as follows:

1. With respect to the Defendant The City of New York and the New York City Police Department:

(a) Declaratory judgment declaring that the Defendant City of New York and New York City Police Department has violated the aforesaid statutes and constitutions.

(b) Restitution to Plaintiff of his rights, privileges, benefits, and income which would have been received by him but for the Defendants unlawful, wrongful, tortuous, and unconstitutional conduct;

(c) Compensatory damages in an amount to be determined by the court and jury;

(d) Punitive damages in the amount to be determined by the court and jury

(e) All legal and statutory interest on sums awarded

(f) Such other and further relief as this honorable court may deem just, proper, and equitable.

2. With respect to each Police Officer Defendants:

(a) Declaratory judgment declaring that the Defendants have violated the aforesaid statutes and constitutions;

(b) Restitution to Plaintiff of his rights, privileges, benefits, and income which would have

been received by them but for Defendants' unlawful, wrongful, tortuous, and unconstitutional conduct;

(c) Compensatory damages in an amount to be determined by the court and jury;

(d) Punitive damages in an amount to be determined by the court and jury;

All legal and statutory interest on sums awarded.

FEDERAL CLAIMS

AS AND FOR A NINTH CAUSE OF ACTION **(Deprivation of Rights Under 42 U.S.C. §§1981 and 1983)**

74. Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "73" with the same force and effect as if fully set forth herein.

75. All of the aforementioned acts of Defendants, their agents, servants, and employees were carried out under the color of state law.

76. All of the aforementioned acts deprived Plaintiff, Aaron Hunter, of his rights, privileges, and immunities guaranteed to him as a citizen of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §§1981 and 1983.

77. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto, and with the intent to discriminate based on gender.

78. The Defendants herein battered, and assaulted the Plaintiff more specifically touched the Plaintiff's body without his consent.

79. Defendants battered and assaulted Aaron Hunter by illegally searching, detaining, touching, pushing, and shoving the Plaintiff all causing him physical injury.

80. The acts complained of were carried out by the aforementioned individual Defendants in

their capacities as police officers, under the customs, usages, practices, procedures, and rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

81. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

82. As a result of the foregoing, Plaintiff, Aaron Hunter is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individuals in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TENTH CAUSE OF ACTION
(False Detention/ False Arrest/ Unlawful Imprisonment under 42 U.S.C. § 1983)

83. Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "82" with the same force and effect as if fully set forth herein.

84. Defendants did falsely detain the Plaintiff, Aaron Hunter, and falsely arrested the Plaintiff without Probable Cause, causing him to be detained against his will for an extended time and subjected to physical restraint.

85. Defendants' false detention, arrest, and illegal search of Plaintiff was without Probable Cause and said misconduct was malicious in nature.

86. As a result of the foregoing, Plaintiff, Aaron Hunter, is entitled to compensatory damages in an amount to be fixed by a jury and are further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(Malicious Abuse of Process Authority under 42 U.S.C. § 1983)

87. Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs

“1” through “86” with the same force and effect as if fully set forth herein.

88. Defendants issued criminal process against Plaintiff, Aaron Hunter, by detaining, touching, pushing, shoving and illegally searching Plaintiff as they acted under the color of law.

89. Defendants' actions were an abuse of authority given that they had no Probable Cause to detain, seize and/or search the Plaintiff, Aaron Hunter.

90. As a result of the foregoing, the Plaintiff, Aaron Hunter, is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWELFTH CAUSE OF ACTION
(Violation of the Equal Protection Clause under 42 U.S.C. § 1983)

91. Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs “1” through “90” with the same force and effect as if fully set forth herein.

92. Plaintiff, Aaron Hunter, was falsely detained, arrested, and physically restrained. During this physical restraint, Aaron Hunter was seized forcibly handcuffed as well as searched, battered, assaulted, falsely detained, pushed, and subjected to excessive force.

93. The physical restraint and public search as to the Plaintiff, Aaron Hunter, was based on his nationality as an African American male, age, and gender, and the failure to intervene to prevent such treatment committed by the named Defendants were also based on the above mentioned.

94. The battery, assault, and false detention/arrest committed on the Plaintiff were based on him being an African American male, his age, and his gender. But for the aforementioned, Aaron Hunter would not have been physically restrained or searched.

95. Moreover, the failure to intervene by other unknown officers present, as to said battery, assault, and search was founded on the above-cited factors.

96. The Defendants' false detention and arrest of Aaron Hunter was based on his Nationality, Race, Gender, and Age as well as the named Defendants' failure to intervene as to this misconduct.
97. As a result of the foregoing, Plaintiff, Aaron Hunter, was deprived of his rights under the Equal Protection Clause of the United States Constitution.
98. As a result of the foregoing, Plaintiff, Aaron Hunter, is entitled to compensatory damages in an amount to be fixed by a jury and are further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Deprivation of Substantive Due Process under 42 U.S.C. § 1983)

99. Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "98" with the same force and effect as if fully set forth herein.
100. The Defendants' conduct herein was an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment.
101. As a result of the foregoing, Plaintiff, Aaron Hunter, was deprived of his liberty and right to substantive due process, causing emotional injuries.
102. As a result of the foregoing, Plaintiff, Aaron Hunter is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

103. Plaintiff repeats, reinstates, and realleges each and every allegation contained in

paragraphs “1” through “102” with the same force and effect as if fully set forth herein.

104. Defendants have an affirmative duty to intervene on behalf of the Plaintiff, Aaron Hunter, whose constitutional rights were being violated in his presence by other officers.

105. The Defendants failed to intervene to prevent the unlawful conduct described herein.

106. As a result of the foregoing, Plaintiff, Aaron Hunter, liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subjected to other physical restraints.

107. As a result of the foregoing, Plaintiff, Aaron Hunter, is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)**

108. Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs “1” through “107” with the same force and effect as if fully set forth herein.

109. The supervisory defendants personally caused Plaintiff’s constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise, train and/or discipline their subordinates’ employees.

110. As a result of the foregoing, Plaintiff, Aaron Hunter, is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

111. The foregoing customs, policies, usages, practices, procedures, deliberate indifferences to discipline and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered

by Plaintiff, Aaron Hunter as alleged herein.

112. The foregoing customs, policies, usages, practices, procedures, deliberate indifferences to discipline and rules of the CITY OF NEW YORK and the New York City Police Department were the moving force behind the Constitutional violations suffered by Plaintiff as alleged herein.

113. As a result of the foregoing customs, policies, usages, practices, procedures, and deliberate indifference as to discipline and rules of the CITY OF NEW YORK and the New York City Police Department, Plaintiff, Aaron Hunter, was unlawfully detained, arrested, battered, assaulted, and searched.

114. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiff's constitutional rights.

115. All the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from false detention, false arrest, and unlawful imprisonment;
- C. To be free from the failure to intervene;
- D. To be free from malicious prosecution;
- E. To be free from malicious abuse of process; and excessive force, battery, and assault;
- F. To receive equal protection under the law.

116. As a result of the foregoing, Plaintiff, Aaron Hunter, is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, Plaintiff, Aaron Hunter, demands judgment and prays for the following relief jointly and severally, against the Defendants as follows:

1. Full and fair compensatory damages in an amount to be determined by a jury;
2. Punitive damages in an amount to be determined by a jury;
3. Reasonable attorney's fees and the costs and disbursements of this action; and
4. Such other and further relief as appears just and proper.

Plaintiff further asserts the following state law violations as a result of the Defendants' misconduct:

Dated: New York, New York
March 27, 2024

/s/ ROYCE RUSSELL
R-SQUARE ESQ, PLLC.
Royce Russell, Esq.,
Attorneys for the Plaintiff
112 West 34th, 18 Floor
New York, New York 10120
(718) 785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of R-SQUARE, ESQ. PLLC., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by Plaintiff is that the Plaintiff does not reside in the County where the undersigned maintains an office.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
March 27, 2024

/s/ ROYCE RUSSELL
By: Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

AARON HUNTER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER HILMEE M. KASSIM, SHIELD 9792, POLICE OFFICER SHEIKH M.
AKTARUZZMAN, SHIELD 26939 AND POLICE OFFICERS JOHN DOE #1-4 (FICTITIOUS
NAMES BECAUSE THEIR IDENTITIES ARE UNKNOWN), ALL INDIVIDUALLY AND IN
THEIR CAPACITY AS POLICE OFFICERS,
Defendants.

SUMMONS WITH VERIFIED COMPLAINT

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Shield 26939
c/o 1 Police Plaza
New York, New York 10038

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: March 27, 2024

Signature

/s/ ROYCE RUSSELL
Royce Russell, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on